

HOUSE BILL 946

By Brooks

AN ACT to amend Tennessee Code Annotated, Title 5;
Title 6; Title 7; Title 13; Title 54; Title 65 and Title
68, relative to high energy use facilities.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Title 13, Chapter 7, is amended by adding
the following as a new part:

13-7-701. Definitions.

As used in this section, unless context requires otherwise:

(1) "High energy use facility" or "HEUF" means a project requiring one hundred megawatts (100 MW) or more of electrical power from an electric utility providing retail service to the facility, and includes a data center project requiring one hundred megawatts (100 MW) or more of electrical power from an electric utility providing retail service to the facility;

(2) "Locality" means a county, municipal, or other local governing body with jurisdiction over zoning, permitting, regulations, and ordinances;

(2) "Special exception" means a use of real property that is not permitted in a particular zoning district, except by means of a special use permit, variance, rezoning application, or other legislative or administrative action; and

(3) "Special use permit" means a permit issued by a locality or state-level agency that authorizes a special exception.

13-7-702. Site assessments.

(a)

(1) Prior to the approval of a rezoning request, special exception, or special use permit for the siting of a new HEUF, a locality must require the applicant to perform and submit a site assessment to examine the sound profile of the HEUF on residential areas and schools within five hundred feet (500') of the HEUF property.

(2) A locality may require that a site assessment examine the effects of the proposed HEUF facility on water, agricultural resources, parks, registered historic sites, and forestland located on the HEUF site or immediately contiguous land.

(3) A locality may request that permitting procedures, if any are required, and site assessments be conducted with guidance and oversight from the department of environment and conservation.

(b) Prior to the approval of a rezoning request, special exception, or special use permit for the siting of a new HEUF, a locality must require the electric utility providing retail service to the new HEUF to submit a site assessment to the locality describing:

(1) New electric generating units that will be required within the jurisdiction to serve the project;

(2) New or existing substations that will be used to serve the HEUF; and

(3) The anticipated transmission voltage required to serve the HEUF.

(c) Site assessments submitted to a locality under subsections (a) and (b) must be used by the locality to assess consistency with the policies of the locality's comprehensive plan and compliance with the locality's noise ordinances, zoning ordinances, and other applicable laws and regulations.

(d) This part does not apply to a site with existing local, legislative, or administrative approval where an applicant is seeking an expansion or modification of an already existing or approved facility, and such expansion does not exceed an additional one hundred megawatts (100 MW) or more of electrical power.

(e) This section does not repeal or modify the regulatory authority of any administrative agency, nor any federal, state, or local law.

(f) This section does not repeal or modify an existing locality's authority to regulate zoning or permitting, or to issue ordinances within the locality's jurisdiction.

SECTION 2. The headings in this act are for reference purposes only and do not constitute a part of the law enacted by this act. However, the code commission is requested to include the headings in any compilation or publication containing this act.

SECTION 3. This act takes effect upon becoming a law, the public welfare requiring it.